

CODE

Whistleblower protection

Draft for member review | 29 September 2026

Plain language summary

A report goes to the appeal body, not up the chain of command. Reprisal within 180 days is presumed unless written reasons are filed in 10 days. A report that has to be approved by the person it concerns will not be made. Criminal matters still go to the police.

Working draft. Not adopted law. A public accusation about a named person can be defamation. Laws cited were read on the Justice Canada consolidations current to 21 September 2026, the Charter and Constitution Act, 1982 consolidation, and the Treaty No. 8 text published by Crown-Indigenous Relations and Northern Affairs Canada. This draft is not a legal opinion.

Part 1. Purpose

1.1 This instrument is the way a member or an employee reports a breach of this set without giving the report to the person who is the subject of it.

1.2 The report goes to the appeal body. It does not go to the chief as a condition of being heard. A rule that requires the chief's permission first is void.

Part 2. How to report

2.1 A report may be written or oral. The appeal body must write down an oral report within 2 days, keep the recording or the notes, and give the reporter a file number. An anonymous report is allowed. The body must open a file if the report states a date, a section, and a fact that can be checked. A report that names no fact may be closed within 15 days, with a one line reason in the file.

2.2 If the report describes conduct that may be a criminal offence, the appeal body must refer that part to the police within 2 days. The internal file continues for the questions of office, pay, and repayment. This instrument does not acquit or convict anyone.

2.3 The body must tell the reporter, if the body knows how to reach them, whether the file is open, referred, or closed, within 30 days. A finding on a breach of this set must be decided within a further 45 days, in writing.

Part 3. No reprisal

3.1 No councillor, employee, or contractor may dismiss, evict, cut a program, or threaten a person because that person made a report in good faith or gave evidence to the appeal body.

3.2 A dismissal, eviction, or program cut within 180 days after a report is presumed to be reprisal unless the decision maker files written reasons with the appeal body within 10 days of the decision. The reasons must show the same rule would apply to a person who had not reported.

3.3 On a reprisal complaint, the decision complained of is suspended the day the appeal body receives the complaint. A benefit that was cut must be restored within 7 days. The person who took the reprisal must not make that decision again. A second reprisal finding removes that person from office or employment, effective 7 days after the written decision unless a court stays it in those 7 days.

Part 4. What gets published

4.1 The public log states the file number, the section allegedly breached, the outcome, and the date. It does not publish the unverified story. A public accusation that a named person committed a crime or a fraud can be defamation. Members should make that accusation, if they make it, in the report to the appeal body, not in a poster or a video.

4.2 A person who makes a report knowing it is false is not eligible to open another file for 1 year. The appeal body must post that finding, without repeating the false content, within 7 days. That finding is not a court judgment.

Part 5. Amendment

5.1 Council must not amend this whistleblower instrument by resolution. A resolution that purports to amend it is void on the day it is signed. The appeal body must post that fact within 14 days.

5.2 An amendment passes only if a majority of the votes cast are yes and at least 25 percent of the electors cast a ballot.

5.3 The electoral officer must post the full proposed text at least 30 days before the vote. A vote held on shorter notice is void.

5.4 An amendment that removes or weakens a spending limit, a signature rule, a ban on voting on one's own pay, honorarium, travel, or contract, publication of financial statements or the remuneration schedule, a term limit, the fixed election date, the conflict register, a recusal rule, a right-to-information deadline, the whistleblower channel to the appeal body, the independence of the appeal body, or the rule that members, not council alone, amend a law does not pass under 5.2. It passes only if a majority of all electors vote yes. If that count is not met, the amendment is void.

5.5 The electoral officer must post the count within 3 days.

Part 6. Review and coming into force

6.1 The appeal body must review this whistleblower instrument every 4 years, counted from the day it comes into force, and must post a written report within 60 days after that anniversary. The report does not amend this whistleblower instrument.

6.2 Within 90 days of that report, council must either put a recommended amendment to the electors under Part 5, or post written reasons for not doing so. If council does neither, the appeal body must post that omission on day 91, and council honoraria stop on day 91 until one of those two things is done.

6.3 this whistleblower instrument comes into force on the day after the electors approve it under Part 5. Until that day it is a draft. It does not repeal an election code, by-law, or policy already in force.

6.4 Where a law already in force sets its own replacement rule, this whistleblower instrument replaces that law only if the electors also meet that rule. A lawyer should compare the two texts before the vote.

6.5 The records officer must keep the adopted text posted for at least 10 years. If it is not posted by day 10 after the vote, the records officer must post a written reason that day, and the appeal body must appoint a replacement records officer within a further 10 days.

This is not a legal opinion. A lawyer, or a person whose work is First Nation governance, should review this draft before members vote. A by-law that conflicts with the Indian Act, the Criminal Code, or another federal law is of no effect to the extent of the conflict. Police and Crown prosecution of a band by-law is uneven. The Minister's steps under the First Nations Financial Transparency Act, section 13, are discretionary. The consequences in this instrument are internal for that reason.